

No. K-43022/44/2023-SEZ
Government of India
Ministry of Commerce and Industry
Department of Commerce
(SEZ Section)

Vanijya Bhawan, New Delhi
Dated the 06th June, 2023

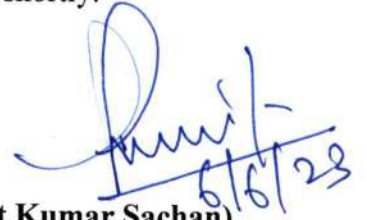
OFFICE MEMORANDUM

Subject: 3rd meeting (2023 Series) of the Board of Approval for Export Oriented Units and 115th Meeting of the Board of Approval (BoA) for Special Economic Zones (SEZs) scheduled to be held on 17th June, 2023 – Reg.

The undersigned is directed to refer to this Department's OM of even no. dated 30.05.2023 on the subject cited above and to inform that the 3rd meeting (2023 Series) of the Board of Approval for Export Oriented Units and 115th meeting of the BoA for SEZs is scheduled to be held on **17th June, 2023 at Pune** under the chairmanship of Commerce Secretary in hybrid mode.

2. The agenda for the 115th meeting of the BoA for SEZs is enclosed herewith.
3. The Venue and meeting link of the aforesaid meeting will be shared shortly.

Encl: As above



(Sumit Kumar Sachan)

Under Secretary to the Government of India

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To

1. Central Board of Excise and Customs, Member (Customs), Department of Revenue, North Block, New Delhi. (Fax: 23092628).
2. Central Board of Direct Taxes, Member (IT), Department of Revenue, North Block, New Delhi. (Telefax: 23092107).
3. Joint Secretary, Ministry of Finance, Department of Financial Services, Banking Division, Jeevan Deep Building, New Delhi (Fax: 23344462/23366797).
4. Shri Anil Agarwal, Additional Secretary, Department of Promotion of Industry and Internal Trade (DPIIT), Udyog Bhawan, New Delhi.
5. Joint Secretary, Ministry of Shipping, Transport Bhawan, New Delhi.
6. Joint Secretary (E), Ministry of Petroleum and Natural Gas, Shastri Bhawan, New Delhi
7. Joint Secretary, Ministry of Agriculture, Plant Protection, Krishi Bhawan, New Delhi.
8. Ministry of Science and Technology, Sc 'G' & Head (TDT), Technology Bhavan, Mehrauli Road, New Delhi. (Telefax: 26862512)

9. Joint Secretary, Department of Biotechnology, Ministry of Science and Technology, 7th Floor, Block 2, CGO Complex, Lodhi Road, New Delhi - 110 003.
10. Additional Secretary and Development Commissioner (Micro, Small and Medium Enterprises Scale Industry), Room No. 701, Nirman Bhavan, New Delhi (Fax: 23062315).
11. Secretary, Department of Electronics & Information Technology, Electronics Niketan, 6, CGO Complex, New Delhi. (Fax: 24363101)
12. Joint Secretary (IS-I), Ministry of Home Affairs, North Block, New Delhi (Fax: 23092569)
13. Joint Secretary (C&W), Ministry of Defence, Fax: 23015444, South Block, New Delhi.
14. Joint Secretary, Ministry of Environment and Forests, Pariyavaran Bhavan, CGO Complex, New Delhi - 110003 (Fax: 24363577)
15. Joint Secretary & Legislative Counsel, Legislative Department, M/o Law & Justice, A-Wing, Shastri Bhavan, New Delhi. (Tel: 23387095).
16. Department of Legal Affairs (Shri Hemant Kumar, Assistant Legal Adviser), M/o Law & Justice, New Delhi.
17. Secretary, Department of Chemicals & Petrochemicals, Shastri Bhawan, New Delhi
18. Joint Secretary, Ministry of Overseas Indian Affairs, Akbar Bhawan, Chanakyapuri, New Delhi. (Fax: 24674140)
19. Chief Planner, Department of Urban Affairs, Town Country Planning Organisation, Vikas Bhavan (E-Block), I.P. Estate, New Delhi. (Fax: 23073678/23379197)
20. Director General, Director General of Foreign Trade, Department of Commerce, Udyog Bhavan, New Delhi.
21. Director General, Export Promotion Council for EOUs/SEZs, 8G, 8th Floor, Hansalaya Building, 15, Barakhamba Road, New Delhi - 110 001 (Fax: 223329770)
22. Dr. Rupa Chanda, Professor, Indian Institute of Management, Bangalore, Bennerghata Road, Bangalore, Karnataka
23. Development Commissioner, Noida Special Economic Zone, Noida.
24. Development Commissioner, Kandla Special Economic Zone, Gandhidham.
25. Development Commissioner, Falta Special Economic Zone, Kolkata.
26. Development Commissioner, SEEPZ Special Economic Zone, Mumbai.
27. Development Commissioner, Madras Special Economic Zone, Chennai
28. Development Commissioner, Visakhapatnam Special Economic Zone, Visakhapatnam
29. Development Commissioner, Cochin Special Economic Zone, Cochin.
30. Development Commissioner, Indore Special Economic Zone, Indore.
31. Development Commissioner, Mundra Special Economic Zone, 4th Floor, C Wing, Port Users Building, Mundra (Kutch) Gujarat.
32. Development Commissioner, Dahej Special Economic Zone, Fadia Chambers, Ashram Road, Ahmedabad, Gujarat
33. Development Commissioner, Navi Mumbai Special Economic Zone, SEEPZ Service Center, Central Road, Andheri (East), Mumbai - 400 096
34. Development Commissioner, Sterling Special Economic Zone, Sandesara Estate, Atladra Padra Road, Vadodara - 390012
35. Development Commissioner, Andhra Pradesh Special Economic Zone, Udyog Bhawan, 9th Floor, Siripuram, Visakhapatnam - 3
36. Development Commissioner, Reliance Jamnagar Special Economic Zone, Jamnagar, Gujarat
37. Development Commissioner, Surat Special Economic Zone, Surat, Gujarat

38. Development Commissioner, Mihan Special Economic Zone, Nagpur, Maharashtra
39. Development Commissioner, Sricity Special Economic Zone, Andhra Pradesh.
40. Development Commissioner, Mangalore Special Economic Zone, Mangalore.
41. Government of Andhra Pradesh, Principal Secretary and CIP, Industries and Commerce Department, A.P. Secretariat, Hyderabad – 500022. (Fax: 040-23452895).
42. Government of Telangana, Special Chief Secretary, Industries and Commerce Department, Telangana Secretariat Khairatabad, Hyderabad, Telangana.
43. Government of Karnataka, Principal Secretary, Commerce and Industry Department, Vikas Saudha, Bangalore – 560001. (Fax: 080-22259870)
44. Government of Maharashtra, Principal Secretary (Industries), Energy and Labour Department, Mumbai – 400 032.
45. Government of Gujarat, Principal Secretary, Industries and Mines Department Sardar Patel Bhawan, Block No. 5, 3rd Floor, Gandhinagar – 382010 (Fax: 079-23250844).
46. Government of West Bengal, Principal Secretary, (Commerce and Industry), IP Branch (4th Floor), SEZ Section, 4, Abanindranath Tagore Sarani (Camac Street) Kolkata – 700 016
47. Government of Tamil Nadu, Principal Secretary (Industries), Fort St. George, Chennai – 600009 (Fax: 044-25370822).
48. Government of Kerala, Principal Secretary (Industries), Government Secretariat, Trivandrum – 695001 (Fax: 0471-2333017).
49. Government of Haryana, Financial Commissioner and Principal Secretary), Department of Industries, Haryana Civil Secretariat, Chandigarh (Fax: 0172-2740526).
50. Government of Rajasthan, Principal Secretary (Industries), Secretariat Campus, Bhagwan Das Road, Jaipur – 302005 (0141-2227788).
51. Government of Uttar Pradesh, Principal Secretary, (Industries), Lal Bahadur Shastri Bhawan, Lucknow – 226001 (Fax: 0522-2238255).
52. Government of Punjab, Principal Secretary Department of Industry & Commerce Udyog Bhawan), Sector -17, Chandigarh- 160017.
53. Government of Puducherry, Secretary, Department of Industries, Chief Secretariat, Puducherry.
54. Government of Odisha, Principal Secretary (Industries), Odisha Secretariat, Bhubaneshwar – 751001 (Fax: 0671-536819/2406299).
55. Government of Madhya Pradesh, Chief Secretary, (Commerce and Industry), Vallabh Bhavan, Bhopal (Fax: 0755-2559974)
56. Government of Uttarakhand, Principal Secretary, (Industries), No. 4, Subhash Road, Secretariat, Dehradun, Uttarakhand
57. Government of Jharkhand (Secretary), Department of Industries Nepal House, Doranda, Ranchi – 834002.
58. Union Territory of Daman and Diu and Dadra Nagar Haveli, Secretary (Industries), Department of Industries, Secretariat, Moti Daman – 396220 (Fax: 0260-2230775).
59. Government of Nagaland, Principal Secretary, Department of Industries and Commerce), Kohima, Nagaland.
60. Government of Chattishgarh, Commissioner-cum-Secretary Industries, Directorate of Industries, LIC Building Campus, 2nd Floor, Pandri, Raipur, Chhattisgarh (Fax: 0771-2583651).

Copy to: PPS to CS / PPS to AS (LSS) / PPS to JS (VB) / PPS to Dir (SNS).

**Agenda for the 115th meeting of the Board of Approval for Special Economic Zones
to be held on 17th June, 2023**

115.1: Ratification of the minutes of the 114th meeting of the Board of Approval held on 15th April, 2023.

115.2: Request for extension of validity of formal approval for developers (1 proposal)

Rule position: In terms of Rule 6(2) of the SEZ Rules, 2006, the letter of approval of a developer shall be valid for a period of three years within which time at least one unit has commenced production and the SEZ become operational from date of commencement of such production. The Board may on an application by the developer for reasons to be recorded in writing extend the validity period.

115.2(i) Request of M/s. Nagaland Industrial Development Corporation Ltd. SEZ for extension of the validity period of the Formal Approval granted for setting up of a sector specific SEZ for Agro and Food Processing for a further period of 03 years beyond 02.12.2022.

Name of the Developer	:	M/s. Nagaland Industrial Development Corporation Limited
Sector	:	Agro & Food Processing
Location	:	Dimapur, Nagaland
Extension	:	Formal approval was issued on 12.10.2007. The Developer has been granted 7 extensions. The SEZ stands notified as on date over an area of 50 Ha.
Request	:	Extension of validity of formal approval for three years beyond 02.12.2022

The Board of Approval in its meeting on 06.01.2017 had directed to issue a Show Cause Notice and to carry out a physical inspection of the above said SEZ. As informed by the DC, a Show Cause Notice was issued on 10.02.2017 and the Inspection was carried out by the representative of Falta SEZ on 27.04.2017, wherein the following was observed:

(i) M/s. NIDCL, the Developer had created common infrastructure facilities such as road, boundary wall, administrative block, guest house, House, Industrial Shed, and Electrification etc.

(ii) Physical Progress:

Sl. No.	Activities	Percentages Completion of work
1.	Land & Site Development	100%
2.	Internal main road and Internal approach road	100%
3.	Administrative Building	100%
4.	Guest House Building	100%
5.	Boundary Wall	100%
6.	Water Treatment Plant	15%

7.	Common Effluent Treatment Plant	In the pipeline
8.	Sewerage/external drainage	In the pipeline
9.	Cold Storage	In the Pipeline

On the basis of such progress and reply of SCN, BoA had again extended the LOA.

Further, DC has informed that the 1st UAC Meeting was held in Nagaland on 18.11.2019 wherein one unit, M/s. Zatarra Pvt. Ltd. was granted LoA on 03.12.2019 for manufacturing and export of 'King Chilly Hot Sauce, King Chilly Pickle, Dried Chilly Powder, Dried Chilly Pods, Powdered King Chilly and Seeds for Germinations'. However, despite after a considerable period of time, since lapse of LoA of both the Developer and the Unit, no application had been received for extension of LoA from the Developer. Neither any reason was cited nor any update was provided in this regard.

DC office had requested the Developer vide letter dated 17.01.2023 to submit the current status of the above said SEZ along with future road-map, Work completion status etc. Now, the Managing Director of M/s. Nagaland Industrial Development Corporation Ltd. has sent a reply dated 03.05.2023 alongwith their application in Form-C1 for extension of their SEZ for further three (03) years beyond 02.12.2023.

Present Progress:

a. Details of Business Plan

Sr. No.	Type of Cost	Proposed Investment (Rs. in Crore)
1.	Land Cost	Nil (Allotted by Govt. Of Nagaland)
2.	Construction Cost	35.00
	Total	35.00

b. Incremental Investment since last extension:

Sr. No.	Type of Cost	Total Investment (Rs. in Crore)	Investment since last extension (Rs. in Crore)
1.	Land Cost	Nil (Allotted by Govt. of Nagaland)	Nil (Allotted by Govt. of Nagaland)
2.	Construction Cost	25.05	4.79
	Total	25.05	4.79

The list of operations carried out at the SEZ as per Form-C1 dated 03.05.2023.

Sl. No.	List of Operations Carried Out	Status of Completion
1.	Site Development for Industrial Plots	100%
2.	Boundary Walls	100%
3.	Administrative Block	100%
4.	Guest House	100%
5.	Electrification	90%
6.	Internal Roads	100%
7.	Water Pipes	100%
8.	Water Treatment Plant	90%

9.	C. E. P.T.	In the pipeline
10.	Cold Storage	In the pipeline
11.	Residential Block	100%
12.	Factory Shed (3 Nos)	100%
13	Standard Design Factory (02 Nos)	100%

The Developer has created common Infrastructure facilities such as Road, Boundary Wall, Administrative Block, Guest House, Industrial Shed, Electrification etc.

Reason for Delay to implement the Project within the schedule date as submitted by the Developer:

- Units are yet to set up at this SEZ.
- Interest has been shown by nine (09) units to establish their units at this SEZ.
- Units have shown interest to set up at AFSEZ (Agro & Food processing SEZ).
- Additional infrastructure to be set up as and when AFSEZ (Agro & Food processing SEZ) units are set up.

Recommendation by DC, Falta SEZ:

DC, FSEZ has recommended the proposal for another two years from 03.12.2022 as this is the only SEZ in NE Region and 95% of the work has been completed and one entrepreneur is interested to set up unit in this SEZ when it is expected to start operation.

Item No. 115.3: Requests for extension of validity of in-principle approval (2 proposals)

Rule position: Rule 6 (2)(b) of the SEZ Rules, 2006 stipulates that "*The letter of approval of a Developer granted under clause (b) of sub-rule (1) shall be valid for a period of one year within which time, the Developer shall submit suitable proposal for formal approval in Form A as prescribed under the provisions of rule 3:*

Provided that the Board may, on an application by the Developer, for reasons to be recorded in writing, extend the validity period:

Provided further that the Developer shall submit the application in Form C2 to the concerned Development Commissioner, as specified in Annexure III, who, within a period of fifteen days, shall forward it to the Board with his recommendations."

115.3(i) Request of M/s. NDR Infrastructure Private Ltd., Chennai, for second extension of validity period of In-Principle Approval granted for setting up of a Multi-Sector SEZ at Soorai Village & Aayal Village, Sholingar Taluk, Ranipet Dist., TN over an area of 50.58 Ha, for a further period of one year beyond 30.06.2023.

M/s. NDR Infrastructure Private Ltd., Chennai was granted "In-Principle" Approval for setting up of "Multi-Sector SEZ" at Soorai Village & Aayal Village, Sholingar Taluk, Ranipet Dist., Tamil Nadu vide LoA dated 08.06.2021. At the time of their application for in-principle approval, they were in possession of 32.37 Hectares (80 acres) of land out of their total proposed 50.58 Hectares for setting up of their Multi Sector SEZ. To fulfil the minimum requirement of land for grant of Formal Approval, the applicant sought time for acquiring the

remaining lands. Accordingly, the first extension for one year was granted by the BoA on 31.03.2022 and the in-principle approval is valid upto 30.06.2023.

The Developer has informed that they acquired additional lands 9.805 Ha (24.23 acres). With the above additional lands, the applicant is presently, in possession of land, totalling 42.175 Hectares (104.21 acres). In their application, the Developer has mentioned the reason for extension of validity i.e., due to delay in concluding the land purchase. They also stated that the inflation of the land price has subsequently escalated the project cost, because of which they could not conclude acquiring the land as per the scheduled time. Also, the land nearby which are proposed for purchase is not having the updated/clear title of the owners. Hence, it is taking time to clear/update the title of the land owner for completing the purchase of the land. However, the Developer has stated that they are confident in purchasing the proposed land area within 10 to 12 months' time. In view of the above, the Developer has sought extension of the validity of their 'In-principle' Approval for another one year till 30.06.2024.

Recommendation by DC, MEPZ SEZ:

DC MEPZ has recommended the proposal for extension of validity of in-principle approval granted to the developer.

115.3(ii) Request of M/s. Magnus Infrastructure Ltd. for extension of validity period of In-Principle Approval granted for setting up of a Multi-Sector SEZ at Neidavoyal Village, Ponneri Taluk, Thiruvallur District, TN, over an area of 50.58 Ha, for a further period of one year beyond 30.06.2023.

M/s. Magnus Infrastructure Ltd. was granted In-Principle Approval for setting up of "Multi-Sector SEZ" at Neidavoyal Village, Ponneri Taluk, Thiruvallur Dist., Tamil Nadu vide LoA dated 08.06.2021. At the time of their application, they were in possession of 22.26 Hectares [55 acres] of land out of their total proposed 50.58 Hectares for setting up of their Multi Sector SEZ. To fulfil the minimum requirement of land for grant of Formal Approval, the applicant sought time for acquiring the remaining lands. Accordingly, the first extension for one year was granted by the BoA on 31.03.2022 and the in-principle approval is valid upto 30.06.2023.

The Developer has informed that they have almost finalised another 10 Ha of land and the same are nearing agreement stage. In their application for extension of validity for a further period of one year, the developer has stated that due to upcoming projects like Cement, Fertilizers & Petro chemicals, around their proposed Multi Sector SEZ, the cost of lands increased substantially high. To conclude the purchase with a reasonable price, the developer is under negotiation with many land owners, for which it may take few more months. However, it is stated that they are confident in acquiring the required remaining land in a year.

Recommendation by DC, MEPZ SEZ:

DC, MEPZ has recommended the proposal for extension of validity of in-principle approval granted to the developer.

115.4: Request for extension of LoA of unit (1 proposal)

Rule position:

- As per Rule 18(1) of the SEZ Rules, the Approval Committee may approve or reject a proposal for setting up of Unit in a Special Economic Zone.
- Cases for consideration of extension of Letter of Approval i.r.o. units in SEZs are governed by Rule 19(4) of SEZ Rules.
- Rule 19(4) states that LoA shall be valid for one year. First Proviso grants power to DCs for extending the LoA for a period not exceeding 2 years. Second Proviso grants further power to DCs for extending the LoA for one more year subject to the condition that two-thirds of activities including construction, relating to the setting up of the Unit is complete and a Chartered Engineer's certificate to this effect is submitted by the entrepreneur.
- Extensions beyond 3rd year (in cases where two-third activities are not complete) and onwards are granted by BoA.
- BoA can extend the validity for a period of one year at a time.
- There is no time limit up to which the Board can extend the validity.

115.4(i) Request of M/s. Algolog Systems Pvt. Ltd., a Unit in Ansal IT City & Parks Ltd., IT/ITES SEZ at Plot No. TZ-06, Tech Zone, Greater Noida (U.P.) for extension of Letter of Approval for a further period of one year i.e., upto 31.03.2024.

Name of Unit : Algolog Systems Pvt. Ltd.
LOA issued on : 26.10.2015
Nature of Business of the unit : Software Development.
No. of Extensions : Unit had been granted three extensions.
LOA valid upto : 31.03.2023 extended by BOA in its meeting dated 31.03.2022
Request : Unit has requested for one year extension i.e., upto 31.03.2024.

Present Progress:**a. Details of business plan: -**

S. No.	Type of Cost	Proposed Investment (Rs.)
1	Land Cost	1,18,20,000/-
2	Construction Cost	2,76,00,000/- (approx.)
3	Plant & Machinery	1,89,00,000/- (approx.)
4	Other Overheads	1,11,868/-
	Total:	5,84,31,868/-

b. Investment made so far & incremental investment since last extension:

S. No.	Type of Cost	Total Investment made so far (Rs.)	Incremental investment since last extension (Rs.)

1	Land Cost	1,18,20,000/-	-
2	Material Procurement	1,56,19,826/-	40,96,234/-
3	Service Cost	69,07,047.20	33,13,647.20
4	Other Overheads	4,28,939/-	3,17,071/-
	Total:	3,47,75,812.20	77,26,952.20

c. Details of Physical progress till date: -

S. No.	Authorised activity	% completion as on date	% completion during last one year	Deadline for completion of balance work
1	Land taken on lease and registration	Done	Done	Within 5 years of date of issue of sanction by Gr. Noida, dt. 03.01.2019
2	Appointment of architect	Done	Done	
3	Submission and approval drawings	Done	Done	
4	Appointment of construction agency	Done	Done	
5	Completion of construction	1. 1. RCC Work upto plinth i.e. work upto basement parking roof completed. 2. Katcha Road along the building side completed.	100% 100%	Within 5 years of date of issue of sanction by Gr. Noida, dt. 03.01.2019.
6	Installation of Machineries	The project building is under construction.	The project building is under construction.	
7	Trial Production			
8	Commercial Production & export			
9	Export orders			

Project Implementation schedule.

- Work for stilt roof (ground level roof) i.e., stilt floor work has been

commenced.
• Work for pucca boundary wall of the site has been started simultaneously.
• Simultaneously the work for other floors commenced
• 3 rd floor will be completed by October' 2023
• Likely trial production November / December' 2023
• Likely commercial production November / December' 2023
• Likely export orders November / December' 2023

Details reasons for delay: -

- Because of the ban on construction and demolition activities in the months of November and December imposed by the NGT due to Supreme Court orders to improve the deteriorating air quality;
- Labour also returned late to work at the construction site, which also hindered the progress.

Recommendation by DC, Noida SEZ:

DC, NSEZ has recommended the extension of LoA for a further period of one year i.e., upto 31.03.2024. A site visit was also undertaken on 01.05.2023 to verify the current state of the project. It was found to be as per the project implementation schedule above.

115.5: Request for co-developer status (5 proposals)

Relevant provision: In terms of sub-section (11) under Section 3 of the SEZ Act, 2005, any person who or a State Government which, intends to provide any infrastructure facilities in the identified area or undertake any authorized operation after entering into an agreement with the developer, make a proposal for the same to the Board for its approval.

115.5(i) Request of M/s. Waystar Realty Private Limited, Ahmedabad for Co-Developer status within the processing Area in GIFT-Multi Services SEZ at Ratanpur, District Gandhinagar, Gujarat, developed by M/s. GIFT SEZ Limited.

1.	Name of the Developer & Location	M/s. GIFT SEZ Limited, Gandhinagar, Gujarat.
2.	Date of LoA to Developer	07-01-2008
3.	Sector of the SEZ	Multi-services-SEZ
4.	Date of Notification	18-08-2011

5.	Total notified area (in Hectares)	105.4386 Hectares
6.	Whether the SEZ is operational or not	SEZ operational
	(i) If operational, date of operationalization	21-04-2012
	(ii) No. of Units	Functional – 232 units Under implementation – 302 units
	(iii) Total Exports & Imports for the last 5 years (Rs. in Cr.)	Exports – 26291.62 Imports – 783.17
	(iv) Total Employment (In Nos.)	4792
7.	Name of the proposed Co-developer	M/s. Waystar Realty Private Limited, Ahmedabad
8.	Details of Infrastructure facilities / authorized operations to be undertaken by the co-developer	Development of SEZ building on Plot No. 15-F.
9.	Total area (in Hectares) on which activities will be performed by the co-developer	7196 square meters (0.719 hectares) 50,066.15 square meters built-up area
10.	Proposed investment by the Co-developer (Rs. in Cr.)	Rs. 350.00 crores
11.	Net worth of the Co-developer (Rs. in Cr.)	Rs. 610.12 crores (of one of the promoters)
12.	Date of the Co-developer agreement	23.03.2023 & 25.05.2023

Recommendation by DC, GIFT SEZ: -

In view of the increase in economic activity and other developments at GIFT-SEZ, Gandhinagar; DC, GIFT SEZ has recommended the proposal of M/s. Waystar Realty Private Limited, Ahmedabad as a Co-Developer, for development of SEZ building on Plot No. 15-F within the processing area in GIFT-SEZ, Gandhinagar.

115.5(ii) Request of M/s. Sreeka Builders Pvt. Ltd. for Co-Developer status in M/s. Phoenix Tech Zone Pvt. Ltd. SEZ, Sy. No. 115/35 at Nanakramguda Village, Serilingampally Mandal, Telangana.

1.	Name of the Developer & Location	M/s. Phoenix Tech Zone Pvt. Ltd.
2.	Date of LoA to Developer	17.2.2017
3.	Sector of the SEZ	IT/ITES
4.	Date of Notification	17.3.2017
5.	Total notified area (in Hectares)	2.02

6.	Whether the SEZ is operational or not	Yes
	(i). If operational, date of operationalization	28.2.2020
	(ii). No. of Units	4
	(iii). Total Exports & Imports for the last 5 years (Rs. in Cr.)	Exports from 2019-20 to 2022-23 – Rs. 2312.38 Crores Imports from 2019-20 to 2022-23 – Rs. 331.98 Crores
	(iv). Total Employment (In Nos.)	Employment from 2019-20 to 2022-23 – 3353 Nos
7.	Name of the proposed Co-developer	M/s. Sreeka Builders Pvt. Ltd
8.	Details of Infrastructure facilities / authorized operations to be undertaken by the co-developer	Upgrade, operate, lease and maintain the authorized operations
9.	Total area (in Hectares) on which activities will be performed by the co-developer	46,669 sq. ft. in 3rd Floor in Tower-B of the SEZ
10.	Proposed investment by the Co-developer (Rs. in Cr.)	41.50
11.	Net worth of the Co-developer (Rs. in Cr.)	100% subsidiary of M/s. Phoenix Tech Zone Pvt. Ltd.
12.	Date of the Co-developer agreement	06.03.2023

Recommendation by DC, MEPZ SEZ:-

DC, MEPZ has recommended the proposal.

115.5(iii) Request of M/s Sreeka Infra Pvt. Ltd. for Co-Developer status in M/s. Phoenix Tech Zone Pvt. Ltd SEZ, Sy. No. 115/35 at Nanakramguda Village, Serilingampally Mandal, Telangana.

1.	Name of the Developer & Location	M/s. Phoenix Tech Zone Pvt. Ltd.
2.	Date of LoA to Developer	17.2.2017
3.	Sector of the SEZ	IT/ITES
4.	Date of Notification	17.3.2017
5.	Total notified area (in Hectares)	2.02
6.	Whether the SEZ is operational or not	Yes
	(i). If operational, date of operationalization	28.2.2020
	(ii). No. of Units	4
	(iii). Total Exports & Imports for the last 5 years (Rs. in Cr.)	Exports from 2019-20 to 2022-23 – Rs. 2312.38 Crores

		Imports from 2019-20 to 2022-23 – Rs. 331.98 Crores
	(iv). Total Employment (In Nos.)	Employment from 2019-20 to 2022-23 – 3353 Nos
7.	Name of the proposed Co-developer	M/s. Sreeka Infra Pvt. Ltd
8.	Details of Infrastructure facilities / authorized operations to be undertaken by the co-developer	Upgrade, operate, lease and maintain the authorized operations
9.	Total area (in Hectares) on which activities will be performed by the co-developer	46,669 sq. ft. in 4th Floor in Tower-B of the SEZ
10.	Proposed investment by the Co-developer (Rs. in Cr.)	41.50
11.	Net worth of the Co-developer (Rs. in Cr.)	100% subsidiary of M/s. Phoenix Tech Zone Pvt. Ltd
12.	Date of the Co-developer agreement	06.03.2023

Recommendation by DC, MEPZ SEZ:

DC, MEPZ has recommended the proposal.

115.5(iv) Request of M/s Evermark SEZ Developers Pvt. Ltd. for Co-Developer status in M/s. Phoenix Tech Zone Pvt. Ltd SEZ, Sy. No. 115/35 at Nanakramguda Village, Serilingampally Mandal, Telangana.

1.	Name of the Developer & Location	M/s. Phoenix Tech Zone Pvt. Ltd.
2.	Date of LoA to Developer	17.2.2017
3.	Sector of the SEZ	IT/ITES
4.	Date of Notification	17.3.2017
5.	Total notified area (in Hectares)	2.032
6.	Whether the SEZ is operational or not	Yes
	(i). If operational, date of operationalization	28.2.2020
	(ii). No. of Units	4
	(iii). Total Exports & Imports for the last 5 years (Rs. in Cr.)	Exports from 2019-20 to 2022-23 – Rs. 2312.38 Crores Imports from 2019-20 to 2022-23 – Rs. 331.98 Crores
	(iv). Total Employment (In Nos.)	Employment from 2019-20 to 2022-23 – 3353 Nos
7.	Name of the proposed Co-developer	M/s. Evermark SEZ Developers Pvt. Ltd.

8.	Details of Infrastructure facilities / authorized operations to be undertaken by the co-developer	Upgrade, operate, lease and maintain the authorized operations
9.	Total area (in Hectares) on which activities will be performed by the co-developer	46,669 sq. ft. in 5 th Floor in Tower-B of the SEZ
10.	Proposed investment by the Co-developer (Rs. in Cr.)	41.50
11.	Net worth of the Co-developer (Rs. in Cr.)	100% subsidiary of M/s. Phoenix Tech Zone Pvt. Ltd.
12.	Date of the Co-developer agreement	06.03.2023

Recommendation by DC, MEPZ SEZ:

DC, MEPZ has recommended the proposal.

115.5(v) Request of M/s Evermark Spaces Pvt. Ltd. for Co-Developer status in M/s. Phoenix Tech Zone Pvt. Ltd SEZ, Sy. No. 115/35 at Nanakramguda Village, Serilingampally Mandal, Telangana.

1.	Name of the Developer & Location	M/s. Phoenix Tech Zone Pvt. Ltd
2.	Date of LoA to Developer	17.2.2017
3.	Sector of the SEZ	IT/ITES
4.	Date of Notification	17.3.2017
5.	Total notified area (in Hectares)	2.032
6.	Whether the SEZ is operational or not	Yes
	(i). If operational, date of operationalization	28.2.2020
	(ii). No. of Units	4
	(iii). Total Exports & Imports for the last 5 years (Rs. in Cr.)	Exports from 2019-20 to 2022-23 – Rs. 2312.38 Crores Imports from 2019-20 to 2022-23 – Rs. 331.98 Crores
	(iv). Total Employment (In Nos.)	Employment from 2019-20 to 2022-23 – 3353 Nos
7.	Name of the proposed Co-developer	M/s. Evermark Spaces Pvt. Ltd
8.	Details of Infrastructure facilities / authorized operations to be undertaken by the co-developer	Upgrade, operate, lease and maintain the authorized operations
9.	Total area (in Hectares) on which activities will be performed by the co-developer	34,743 sq. ft. in 6 th Floor in Tower-B of the SEZ

10.	Proposed investment by the Co-developer (Rs. in Cr.)	30.50
11.	Net worth of the Co-developer (Rs. in Cr.)	100% subsidiary of M/s. Phoenix Tech Zone Pvt. Ltd
12.	Date of the Co-developer agreement	06.03.2023

Recommendation by DC, MEPZ SEZ:

DC, MEPZ has recommended the proposal.

115.6: Request for addition area approval of co-developer (8 proposals)

Relevant provision: In terms of sub-section (11) under Section 3 of the SEZ Act, 2005, any person who or a State Government which, intends to provide any infrastructure facilities in the identified area or undertake any authorized operation after entering into an agreement with the developer, make a proposal for the same to the Board for its approval.

115.6(i) Request of M/s. Bakeri Residences LLP for amendment in area by addition of space in Co-Developer Approval of Residential Building in the dual use non-processing Area in GIFT-Multi Services SEZ at Ratanpur, District Gandhinagar, Gujarat, developed by M/s. GIFT SEZ Limited.

1.	Name of the Developer & Location	M/s. GIFT SEZ Limited, Gandhinagar, Gujarat.
2.	Date of LoA to Developer	07-01-2008
3.	Sector of the SEZ	Multi-services-SEZ
4.	Date of Notification	18-08-2011
5.	Total notified area (in Hectares)	105.4386 Hectares
6.	Whether the SEZ is operational or not	SEZ operational
	(i) If operational, date of operationalization	21-04-2012
	(ii) No. of Units	Functional – 232 units Under implementation – 302 units
	(iii) Total Exports & Imports for the last 5 years (Rs. in Cr.)	Exports – 26291.62 Imports - 783.17
	(iv) Total Employment (In Nos.)	4792
7.	Name of the proposed Co-developer	M/s. Bakeri Residences LLP, GIFT-Multi-Services-SEZ, Gandhinagar
8.	Details of Infrastructure facilities authorized operations to be undertaken by the co-developer	1. The proposed Residential Project consists of connecting towers i.e., Tower A, Tower B and Tower C. ▪ The 3 towers share 3-level

		common basement. - Commercial Retail Shops on Ground and First Floor of each tower. - Residential units start from 2nd floor onwards and extended till the 33 floors for Tower A and C while Tower B extends upto 20 floors. - Project Amenities are being planned on the 2nd floor on each tower.
9.	Total area (in Hectares) on which activities will be performed by the co-developer	An additional basement area of 558 sq mtrs would be added to the already approved 6503 sq. mtrs Approx 94000 Sq.Mtrs (Built up area)
10.	Proposed investment by the Co-developer (Rs. in Cr.)	Rs. 449.00 crores
11.	Net worth of the Co-developer (Rs. in Cr.)	Net Worth of Bakeri Projects Pvt Ltd. (parent company) is Rs. 191.71 crores and the Net worth of Bakeri Residences LLP is NIL which is the SPV acting as a Co-Developer.
12.	Date of the Co-developer agreement	26.05.2023

Recommendation by DC, GIFT SEZ: -

DC, GIFT has recommended the proposal of M/s. Bakeri Residences LLP, Co-Developer, GIFT-Multi-Services-SEZ, Gandhinagar, for development of SEZ building on Residential / Commercial Building at Plot No. 25D within the dual use Non-Processing Area of GIFT SEZ.

115.6(ii) Request of M/s. Savvy ATS Realty LLP, GIFT-Multi-Services-SEZ, Gandhinagar for amendment in area by addition of space in Co-Developer Approval of Residential Building in the dual use non-processing Area in GIFT-Multi Services SEZ at Ratanpur, District Gandhinagar, Gujarat, developed by M/s. GIFT SEZ Limited.

1.	Name of the Developer & Location	M/s. GIFT SEZ Limited, Gandhinagar, Gujarat.
2.	Date of LoA to Developer	07-01-2008
3.	Sector of the SEZ	Multi-services-SEZ
4.	Date of Notification	18-08-2011

5.	Total notified area (in Hectares)	105.4386 Hectares
6.	Whether the SEZ is operational or not	SEZ operational
	(i) If operational, date of operationalization	21-04-2012
	(ii) No. of Units	Functional – 232 units Under implementation – 302 units
	(iii) Total Exports & Imports for the last 5 years (Rs. in Cr.)	Exports – 26291.62 Imports - 783.17
	(iv) Total Employment (In Nos.)	4792
7.	Name of the proposed Co-developer	M/s. Savvy ATS Realty LLP, GIFT-Multi-Services-SEZ, Gandhinagar
8.	Details of Infrastructure facilities / authorized operations to be undertaken by the co-developer	To develop and operate residential building in the dual use area of GIFT SEZ.
9.	Total area (in Hectares) on which activities will be performed by the co-developer	5810 square meters (approved 4790 square meters + current request for addition/increase of 1020 square meters to accommodate movement of fire tender and parking area.
10.	Proposed investment by the Co-developer (Rs. in Cr.)	Rs. 300 crores
11.	Net worth of the Co-developer (Rs. in Cr.)	The SPV is newly formed in the name of Savvy ATS Realty LLP which is executing the project. The LLP being new does not have net worth, the net worth of one of the partner entity Savvy Infrastructure Private Limited is 610.12 crores.
12.	Date of the Co-developer agreement	23-03-2023

Recommendation by DC, GIFT SEZ: -

DC, GIFT SEZ has recommended the proposal of M/s. Savvy ATS Realty LLP, Co-Developer, GIFT-multi-services-SEZ, Gandhinagar for addition/increase of land area of 1020 square meters to accommodate drive-way for fire tender and parking area for the residential project on Plot No.16E, Block No. 16 within the dual use Non-Processing Area of GIFT SEZ.

115.6(iii) Request of M/s. Junomoneta International (IFSC) Private Limited, Gandhinagar for addition of space in the approval as a Co-Developer within the processing Area of GIFT-Multi Services SEZ at Ratanpur, District Gandhinagar, Gujarat, developed by M/s. GIFT SEZ Limited.

1.	Name of the Developer & Location	M/s. GIFT SEZ Limited, Gandhinagar, Gujarat.
2.	Date of LoA to Developer	January 7, 2008
3.	Sector of the SEZ	Multi-services-SEZ
4.	Date of Notification	August 18, 2011

5.	Total notified area (in Hectares)	105.4386 Hectares
6.	Whether the SEZ is operational or not	SEZ operational
	(i) If operational, date of operationalization	April 21, 2012
	(ii) No. of Units	Functional – 232 units Under implementation – 306 units
	(iii) Total Exports & Imports for the last 5 years (Rs. in Cr.)	Exports – 26291.62 Imports - 783.17
	(iv) Total Employment (In Nos.)	4792
7.	Name of the proposed Co-developer	M/s. Junomoneta International (IFSC) Private Limited, Gandhinagar
8.	Details of Infrastructure facilities / authorized operations to be undertaken by the co-developer	Construction, development, maintenance, and operation of SEZ building having built - up area of 3,00,000 square feet on Plot No. 14C, Block no. 14, within the processing area.
9.	Total area (in Hectares) on which activities will be performed by the co-developer	3966 sq. meters (already approved 3399 square meters + current request for addition of 567 square meters for basement parking area).
10.	Proposed investment by the Co-developer (Rs. in Cr.)	Rs. 459.89 crores
11.	Net worth of the Co-developer (Rs. in Cr.)	Rs. 33.73 crores
12.	Date of the Co-developer agreement	24-03-2023

Recommendation by DC, GIFT SEZ: -

DC, GIFT has recommended the proposal of M/s. Junomoneta International (IFSC) Private Limited, Gandhinagar as a Co-Developer, for addition/increase of land area of 567 square meters on Plot No. 14C, Block no. 14, within the processing area in GIFT-SEZ, Gandhinagar.

115.6(iv) Request of M/s. Cybage Software (Private) Limited, Gandhinagar for addition of space in the approval as a Co-Developer within the processing Area of GIFT-Multi Services SEZ at Ratanpur, District Gandhinagar, Gujarat, developed by M/s. GIFT SEZ Limited.

1.	Name of the Developer & Location	M/s. GIFT SEZ Limited, Gandhinagar, Gujarat.
2.	Date of LoA to Developer	January 7, 2008
3.	Sector of the SEZ	Multi-services-SEZ
4.	Date of Notification	August 18, 2011
5.	Total notified area (in Hectares)	105.4386 Hectares
6.	Whether the SEZ is operational or not	SEZ operational
	(i) If operational, date of operationalization	April 21, 2012
	(ii) No. of Units	Functional – 232 units Under implementation – 306 units

	(iii) Total Exports & Imports for the last 5 years (Rs. in Cr.)	Exports – 26291.62 Imports - 783.17
	(iv) Total Employment (In Nos.)	4792
7.	Name of the proposed Co-developer	M/s. Cybage Software (Private) Limited, Gandhinagar
8.	Details of Infrastructure facilities / authorized operations to be undertaken by the co-developer	Construction, development, maintenance, and operation of building having built -up area of 1,20,000 square feet on Plot No. 14H, Block No. 14, within the processing area.
9.	Total area (in Hectares) on which activities will be performed by the co-developer	132321.4 square feet (already approved 1,20,000 square feet built-up area + current request for addition of 4789.94 square feet for basement parking area, & 7531.46 square feet for other utilities).
10.	Proposed investment by the Co-developer (Rs. in Cr.)	Rs.70.98 crores
11.	Net worth of the Co-developer (Rs. in Cr.)	Rs.1018.26 crores
12.	Date of the Co-developer agreement	13-04-2023

Recommendation by DC, GIFT SEZ: -

DC, GIFT has recommended the proposal of M/s. Cybage Software (Private) Limited, Gandhinagar as a Co-Developer, for addition/increase of built-up area of 4789.94 square feet and 7531.46 square feet for parking and other utilities on Plot No. 14H, Block No. 14, within the processing area in GIFT-SEZ, Gandhinagar.

115.6(v) Request of M/s. Rajyash Projects LLP, Ahmedabad for addition of space in the approval as a Co-Developer within the processing Area of GIFT-Multi Services SEZ at Ratanpur, District Gandhinagar, Gujarat, developed by M/s. GIFT SEZ Limited.

1.	Name of the Developer & Location	M/s. GIFT SEZ Limited, Gandhinagar, Gujarat.
2.	Date of LoA to Developer	January 7, 2008
3.	Sector of the SEZ	Multi-services-SEZ
4.	Date of Notification	August 18, 2011
5.	Total notified area (in Hectares)	105.4386 Hectares
6.	Whether the SEZ is operational or not	SEZ operational
	(i) If operational, date of operationalization	April 21, 2012
	(ii) No. of Units	Functional – 232 units Under implementation – 306 units
	(iii) Total Exports & Imports for the last 5 years (Rs. in Cr.)	Exports – 26291.621 Imports - 783.17
	(iv) Total Employment (In Nos.)	4792
7.	Name of the proposed Co-developer	M/s. Rajyash Projects LLP, Ahmedabad

8.	Details of Infrastructure facilities / authorized operations to be undertaken by the co-developer	Construction, development, maintenance, operation of commercial building on building footprint no. 14F, Block no. 14, within the processing area
9.	Total area (in Hectares) on which activities will be performed by the co-developer	2292 square meters (already approved 2050 square meters of land area + current request for addition of 242 square meters of land area for basement parking area, by which there shall be increase in built-up area from 1,20,000 square feet to 1,64,500 square feet an increase of 44,500 square feet of built-up area to accommodate the parking area).
10.	Proposed investment by the Co-developer (Rs. in Cr.)	Rs.100.00 crores
11.	Net worth of the Co-developer (Rs. in Cr.)	Rs. 99.48 crores
12.	Date of the Co-developer agreement	03-04-2023

Recommendation by DC, GIFT SEZ: -

DC, GIFT has recommended the proposal of M/s. Rajyash Projects LLP, Ahmedabad as a Co-Developer, for addition/increase of land area of 242 square meters to accommodate parking area thereby increasing the built-up area from 1,20,000 square feet to 1,64,000 square feet on Plot No. 14F, Block no. 14, within the processing area in GIFT-SEZ, Gandhinagar.

115.6(vi) Request of M/s. Shivalik Jhanvi Infraspac LLP, Ahmedabad for addition of space in the approval as a Co-Developer within the dual use non-processing Area of GIFT-Multi Services SEZ at Ratanpur, District Gandhinagar, Gujarat, developed by M/s. GIFT SEZ Limited

1.	Name of the Developer & Location	M/s. GIFT SEZ Limited, Gandhinagar, Gujarat.
2.	Date of LoA to Developer	January 7, 2008
3.	Sector of the SEZ	Multi-services-SEZ
4.	Date of Notification	August 18, 2011
5.	Total notified area (in Hectares)	105.4386 Hectares
6.	Whether the SEZ is operational or not	SEZ operational
	(i) If operational, date of operationalization	April 21, 2012
	(ii) No. of Units	Functional – 232 units Under implementation – 306 units
	(iii) Total Exports & Imports for the last 5 years (Rs. in Cr.)	Exports – 26291.62 Imports - 783.17
	(iv) Total Employment (In Nos.)	4792
7.	Name of the proposed Co-developer	M/s. Shivalik Jhanvi Infraspac LLP, Ahmedabad

8.	Details of Infrastructure facilities / authorized operations to be undertaken by the co-developer	Develop, construct and operate residential building on building footprint no. 16D, Block no. 16, in the dual use non-processing area
9.	Total area (in Hectares) on which activities will be performed by the co-developer	6723 sq. meters (approved 5595 square meters + current request for addition/increase of 1128 square meters to accommodate drive way for fire tender and parking area.
10.	Proposed investment by the Co-developer (Rs. in Cr.)	Rs.230.00 crores
11.	Net worth of the Co-developer (Rs. in Cr.)	Rs.56.69 crores
12.	Date of the Co-developer agreement	25-05-2023

Recommendation by DC, GIFT SEZ: -

DC, GIFT has recommended the proposal of M/s. Shivalik Jhanvi Infraspace LLP, Ahmedabad as a Co-Developer, for addition/increase of land area of 1128 square meters to accommodate drive-way for fire tender and parking area for the residential project of Plot No. 16D, Block no. 16, in the dual use non-processing area in GIFT-SEZ, Gandhinagar.

115.6(vii) Request of M/s. MariApps Marine Solutions India Private Limited for taking additional land area admeasuring 0.3966 Ha (98 cents) on lease basis from the developer M/s. SmartCity (Kochi) Infrastructure Pvt. Ltd., IT/ITES SEZ at Block – 09, Kakkanad Village, Kanayanoor Taluk, Ernakulam District, Kerala.

1.	Name of the Developer & Location	M/s SmartCity Kochi Infrastructure Private Limited Ernakulam, Kerala					
2.	Date of LoA to Developer	21 st April 2008					
3.	Sector of the SEZ	IT/ITES					
4.	Date of Notification	01.03.2011 & 26.02.2014					
5.	Total notified area (in Hectares)	93.9165 Ha					
6.	Whether the SEZ is operational or not	Operational					
	(i). If operational, date of operationalization	17.06.2016					
	(ii). No. of Units	32					
	(iii). Total Exports & Imports for the last 5 years (Rs. in Cr.)	FY	2018-19	2019-20	2020-21	2021-22	2022-23
		Export	180.53	262.51	332.24	393.87	639.08
		Import	24.00	21.20	30.60	19.81	8.62
(iv). Total Employment (In Nos.)	5175 Additional proposal for 700-750						

7.	Name of the proposed Co-Developer	M/s MariApps Marine Solutions India Private Limited (Existing Co-Developer)
8.	Details of Infrastructure facilities / authorized operations to be undertaken by the co-developer	• Approved Co-Developer status vide Approval No.F.2/74/2006-SEZ dt. 16.04.2018 for development of IT/ITES infrastructure and its operation and maintenance in an area of 0.58674 Ha (145 cents) • Subsequently additional land area of 0.04047 Ha (10 Cents) for creation of Maritime Training Centre was approved vide Approval No.F.2/74/2006-SEZ dated. 01.12.2021 • Present request is for additional land area of 0.3966 Ha (98 cents) for construction of Multi-Level Car Parking to shift the existing Car Parking facilities at Phase-I Building and convert the same to office space
9.	Total area (in Hectares) on which activities will be performed by the co-developer	• At present the Co-Developer is carrying out their activities in an area of 0.6272 Ha (155 cents). • On approval of additional area [i.e., 0.3966 Ha (98 cents)], the net area shall be 1.0238 Ha (253 cents)
10.	Proposed investment by the Co-developer (Rs. in Cr.)	• Existing investment by the Co-Developer is Rs. 87.40 Crore. • Proposed investment for the additional area will be Rs.10 Crore thereby making the total investment to Rs.97.40 Crore
11.	Net worth of the Co-developer (Rs. in Cr.)	87.40
12.	Date of the Co-developer agreement	26 th May 2023

Recommendation by DC, Cochin SEZ: -

DC, CSEZ has recommended the proposal.

115.6(viii) Request of M/s. ANSR Global Corporation Pvt. Ltd. for increase in area of their co-developer area in M/s. Phoenix Tech Zone Pvt. Ltd. at Sy. No. 203(P), Manikoda Village, Rajendra Nagar Mandal, Telangana

1.	Name of the Developer & Location	M/s. Phoenix Tech Zone Pvt. Ltd., Rajendra Nagar Mandal, Telangana
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2.	Date of LoA to Developer	17.2.2017
3.	Sector of the SEZ	IT/ITES
4.	Date of Notification	17.3.2017
5.	Total notified area (in Hectares)	2.02
6.	Whether the SEZ is operational or not	Yes
	(i). If operational, date of operationalization	1.4.2022
	(ii). No. of Units	4
	(iii). Total Exports & Imports for the last 5 years (Rs. in Cr.)	Exports for 2022-23 - Rs. 1,024 Crores Imports for 2022-23 - Rs. 18 Crores
	(iv). Total Employment (In Nos.)	Employment for 2022-23 - 2923 Nos.
7.	Name of the proposed Co-developer	M/s. ANSR Global Corporation Pvt. Ltd.
8.	Details of Infrastructure facilities / authorized operations to be undertaken by the co-developer	To undertake the authorized operations of conversion of warm shell buildings into fully fitted office space and to lease built up space in the SEZ as contracted.
9.	Total area (in Hectares) on which activities will be performed by the co-developer	Existing Area - 0.52 Ha Proposed Area - 0.52 Ha (55,538 sq. ft.) Total Area - 1.04 Ha (1,11,076 sq. ft.)
10.	Proposed investment by the Co-developer (Rs. in Cr.)	19.45
11.	Net worth of the Co-developer (Rs. in Cr.)	89.61
12.	Date of the Co-developer agreement	Co-Developer Agreement dated 12.12.2022 Amendment to Co-Developer Agreement dated 26.5.2023

Recommendation by DC, VSEZ:

DC, VSEZ has recommended the proposal.

115.7: Cancellation of Co-developer status (2 proposals)

Rule Position: Section 2 (g) of the SEZ Act 2005, defines Developer as, “a person who, or a State Government which, has been granted by the Central Government a letter of approval under sub-section (10) of section 3 and includes an Authority and a Co-developer”;

Section 10 of the said Act provides for Suspension of Letter of Approval and sub-section (3) stipulates that no letter of approval shall be suspended under sub-section (1) unless the Board has given to the Developer not less than three months’ notice, in writing, stating the grounds on which it proposes to suspend the letter of approval, and has considered any cause shown by the Developer within the period of that notice, against the proposed suspension.

Since the Co-Developer is covered under the definition of Developer, the suspension of LoA of Co- Developer shall also be governed by Section 10 of the SEZ Act. There is no specific provision for cancellation of LoA, however, on the recommendation of the Development Commissioner for such cancellation on the ground of Co-Developer not fulfilling the necessary requirements / obligations in terms of SEZ Act / Rules or on the request by the Co-Developer, such cancellation has been considered by the BoA in the earlier cases.

115.7(i) Request of M/s. Embassy Services Private Limited for cancellation of Co-Developer status granted in M/s. Saltire Developers Limited SEZ at Outer Ring Road, Rachanahalli Village, Nagavara, Bangalore, Karnataka.

Co-Developer Status issued : M/s Embassy Services Private Limited was issued Letter of Approval dated 19th July 2017 as a Co-Developer for making operation and maintenance of building and other infrastructure/ facilities to be undertaken in the entire area of the SEZ (4.05 Ha).

Nature of functions of the Co-Developer : The authorised operation of the Co-Developer is for making operation and maintenance of building and other infrastructure/facilities to be undertaken in the entire area of the SEZ (4.05 Ha)

Request : For cancellation of Co-Developer status

(a) Reasons for cancellation of Co-Developer status:

The Co-Developer has not carried out any activity under the LoA and has not availed any benefit or incentive under SEZ Scheme. The Co-developer has informed that the demand for SEZ space has substantially decreased in the last few years and also the Co-Developer intend to operate as Industrial IT Park with non-SEZ clients, hence they are under the process of de-notification of the entire SEZ area. Since the entire SEZ area is proposed to be de-notified, the Co-developer decided to surrender the LoA and requested for cancellation of the Co-developer status.

(b) NOC from Saltire Developers Private Limited, Developer of Saltire SEZ.

M/s Embassy Services Private Limited had obtained NOC from the Developer, M/s Saltire Developers Private Limited, for cancellation of Co-Developer status.

(c) The comments from the Specified Officer of Saltire SEZ

The Specified Officer, Saltire Developers Private Limited SEZ informed that they have not availed any tax benefits under SEZ Act/Rules.

Recommendation by DC, Cochin SEZ: -

DC, CSEZ has recommended the proposal.

115.7(ii) Request of M/s. Moser Baer Infrastructure and Developers Ltd. for Cancellation of Co-Developer status granted in M/s. SIPCOT Hitech, SEZ at Oragadam, Chennai.

M/s. State Industries Promotion Corporation of Tamil Nadu Limited (SIPCOT), Hi-tech SEZ at Oragadam a Government of Tamil Nadu undertaking has submitted an application for Cancellation of Co-Developer status of M/s. Moser Baer Infrastructure and Developers Ltd. The Developer (M/s. SIPCOT) was allotted 95.76 acres (38.76 Ha) of land to the Co-Developer based on Board of approval in its 27th meeting held on 01.08.2008 and granted approval to the request of M/s. Moser Baer Infrastructure and Developers Ltd., as Co-Developer for Electronic Hardware and related support activities.

The Co-Developer did not undertake any construction activities and only undertook cutting of bushes and general levelling of the site. Upon assessment of quarterly and half-yearly reports submitted by the Co-developer from 2008-09 to 2018- 19, it reveals that they did not import any goods nor made any procurement from Indigenous/DTA.

M/s. Moser Baer Infrastructure and Developers Ltd., had left the land to M/s. PV Technologies India Limited vide MEPZ approval letter dated 28.08.2008. M/s. PV Technologies India Limited undertook the construction of the site office and preparatory work for construction of the plant. However, no commercial production was commenced. MEPZ granted the LOA extension up to 27.08.2011. Meanwhile, the name of M/s. PV Technologies India Limited was changed to M/s. Moser Baer Solar Limited and the LOA validity got lapsed on 27.08.2012. The Board of Approval in its 54th meeting held on 14.09.2012 has rejected the further extension of LOA due to non-implementation of the project despite of four years.

In view of the above, AO for the respective SEZ instructed to compute the duty due on the goods procured under exemption by M/s. Moser Baer Solar Limited. Accordingly, AO reported that based on the invoices and documents recovered from the Unit, a duty demand for 4,07,768/- Four lakh seven thousand seven hundred and sixty-eight only) was issued and the same was recovered by TR challan.

Following the possession of land taken over by M/s. SIPCOT vide "Tamil Nadu Public Premises Eviction Act, 1975, suo-moto cancellation deed was executed and registered on 18.03.2021 under the name M/s. SIPCOT Hence, the proposal for cancellation of Co-developer status of M/s Moser Baer Infrastructure and Developers Ltd., is proposed for consideration

DC, MEPZ has stated that in accordance with the request of the Developer (M/s. SIPCOT) the Registration Department, Government of Tamil Nadu had cancelled the Lease agreement w.e.f. from 18.03.2021.

Authorised officer from the respective SEZ had submitted a letter dated 18.07.2022 with countersigned by DDC stating that there are no dues pending since all the taxes and duties have been collected from the Co-Developer (M/s. Moser Baer Infrastructure and Developers). The report on Import duty free submitted by the Co-Developer for the period January-March 2019 is mentioned as "NIL" which is clearly evidenced that they have not taken any steps towards development and the report was countersigned by the respective AO SEZ.

Recommendation by DC, MEPZ SEZ:

DC, MEPZ has recommended the proposal.

115.8: Request for Setting up of new SEZ (2 proposals)

115.8(i) Request of M/s. State Industries Promotion Corporation of Tamil Nadu Limited (SIPCOT) for setting up of a Multi-Sector SEZ at A Sathanur Village, Ullundurpet Taluk, Kallakurichi District, Tamil Nadu over an area of 77.0950 Ha (190.50 Acres).

The status of documents required for setting up of a new SEZ for consideration of the BoA and grant of LoA are as follows: -

S. No.	Conditions /Documents required	Status
A.	Documents required for setting up of SEZ in terms of Rule 3 of SEZ Rules, 2006:	
(i)	Completed Form-A (with enclosures) A. Total Proposed : Rs. 2302 Cr. by Units & investment 107.49 Cr. by the Developer B. FDI (in US \$) : 278.27 Million C. Source of FDI : Taiwan D. Proposed Exports : US \$ 191 Million (Rs. 1529 Crores) E. Employment (in Nos.) : 20,000 Direct & In Dir.	Yes, provided
(ii)	DC's Inspection Report	Yes, provided
(iii)	State Government's Recommendation	Yes, provided
(iv)	Recommendation for National Security Clearance (NSC) from Ministry of Home Affairs as per Rule 3 of SEZ Rules, 2006.	DC, MEPZ has recommended that NSC is not required.

B.	Minimum area requirement in terms of Rule 5 of SEZ Rules, 2006.	Yes, condition is met as the proposed land area is 77.09.50 Ha (190.50 Acres).
C.	Details to be furnished in terms of Rule 7 of SEZ Rules, 2006:	
(i)	Certificate from the concerned State Government or its authorised agency stating that the Developer has: • Legal Possession, and • Irrevocable rights to develop the said area as SEZ, and • That the said area is free from all encumbrance.	Vide letter dated 16.03.2023, Industries, Investment Promotion (MIE.2) Department, Secretariat, Govt. of Tamil Nadu has stated that; • The land is already in possession of SIPCOT and is free from any encumbrance. The land is a contiguous one with no thoroughfare. • Legal Possession Certificate has been provided. Further, vide Certificate dated 21.04.2023, Tahsildar, Ullundurpet has certified that; • The Developer has the irrevocable rights to develop the lands and the lands are contiguous and vacant and free from any encumbrances / hindrances.
(ii)	Whether the Developer has leasehold right over the identified area. The lease shall be for a period not less than twenty years.	
(iii)	The identified area shall be Contiguous, Vacant and No thoroughfare	

Further, in compliance of DoC's Instruction No. 102 dated 18.11.2019 regarding Physical Inspection and Contiguity condition, an Inspection Report has been provided by MEPZ. As per report, physical inspection was conducted on 19.04.2023 by DDC, ADC – MEPZ SEZ; Tahsildar, Revenue Department Ullundurpet Taluk; Revenue Inspector, Ullundurpet Taluk and AGM, SIPCOT. It has been noted that the Developer fulfils the Contiguity condition stipulated under rule 5 (read with rule 7) of the SEZ Rules, 2006.

Recommendation of DC, MEPZ SEZ:

DC, MEPZ has recommended the proposal for its consideration by the BoA.

115.8(ii) Request of M/s. State Industries Promotion Corporation of Tamil Nadu Limited (SIPCOT) for setting up of a Multi-Sector SEZ at Panapakkam Village, Ranipet District, Tamil Nadu over an area of 52.20 Ha (129 acres).

The status of documents required for setting up of a new SEZ for consideration of the BoA and grant of LoA are as follows: -

S. No.	Conditions /Documents required	Status
A.	Documents required for setting up of SEZ in terms of Rule 3 of SEZ Rules, 2006:	
(i)	Completed Form-A (with enclosures) A. Total Proposed investment : Rs. 1,000 Cr. by Units & 101 Cr. by the Developer B. FDI (in US \$) : 120 Million C. Source of FDI : Taiwan D. Proposed Exports : US \$ 191 Million (Rs. 1529 Crores) E. Employment (in Nos.) : 20,000 Direct & In Dir.	Yes, provided
(ii)	DC's Inspection Report	Yes, provided
(iii)	State Government's Recommendation	Yes, provided
(iv)	Recommendation for National Security Clearance (NSC) from Ministry of Home Affairs as per Rule 3 of SEZ Rules, 2006.	DC, MEPZ has recommended that NSC is not required.
B.	Minimum area requirement in terms of Rule 5 of SEZ Rules, 2006.	Yes, the condition is met as the proposed land area is 52.20 Ha (129 acres).
C.	Details to be furnished in terms of Rule 7 of SEZ Rules, 2006:	
(i)	Certificate from the concerned State Government or its authorised agency stating that the Developer has: - Legal Possession, and - Irrevocable rights to develop the said area as SEZ, and - That the said area is free from all encumbrance.	Vide letter dated 23.05.2023, Industries, Investment Promotion (MIE.2) Department, Secretariat, Govt. of Tamil Nadu has stated that; SIPCOT is in possession of 129 acres (52.20 Ha) of land and will be the Developer of the
(ii)	Whether the Developer has leasehold right over the identified area. The lease shall be for a period not less than twenty years.	

(iii)	The identified area shall be Contiguous, Vacant and No thoroughfare.	SEZ. • The land for the proposed SEZ is contiguous with no thoroughfare. • The land is free from any litigation and is in absolute possession of SIPCOT. Further, vide Certificate dated 26.04.2023, Tahsildar, Nemili Taluk has certified that; • M/s. SIPCOT has the irrevocable rights to develop the lands described above as on date. • The lands described above are contiguous and lying vacant and free from any encumbrances / hindrances or whatsoever.
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Further, in compliance of DoC's Instruction No. 102 dated 18.11.2019 regarding Physical Inspection and Contiguity condition, an Inspection Report has been provided. As per report, physical inspection was conducted on 26.04.2023 by DDC, MEPZ-SEZ along with Officials from Revenue Department, Govt. of Tamil Nadu. It is noted that the proposed area is 52.20 Ha out of which Processing area is 70% and Non-processing area is 30%. Further, the Developer fulfils the Contiguity condition stipulated under rule 5 (read with rule 7) of the SEZ Rules, 2006.

Recommendation of DC, MEPZ SEZ:

DC, MEPZ has recommended the proposal for its consideration by the BoA.

115.9: Renewal of LoA of plastic recycling units (1 case)

115.9(i) Renewal of LoA of remaining plastic units in Kandla SEZ for a period of five years.

The request of plastic recycling units for renewal of their LoA for a period of five years was placed before the Board of Approval in its 112th meeting held on 29.10.2022. The BoA, by consensus, decided to extend the validity of LoA on temporary basis of only those units which fulfil the following conditions:

1. Units should have been functional and carried out at least some production during the stipulated period of 18 months (i.e., 27th January, 2021 to 26th July, 2022).
2. Units should have made at least some exports during the stipulated period of 18 months (i.e., 27th January, 2021 to 26th July, 2022).
3. Units shall undertake not to carry out any DTA sales till they fulfil the shortfall of NFE and export obligations for the period upto their period of expiry of validity i.e., 26th August 2022. On fulfilment of shortfall in NFE and other export obligations as stipulated above which shall be confirmed by the jurisdictional DC, and the DC may allow DTA sale to units subject to fulfilling of policy dated 27.05.2021.
4. The extension would be granted for a further period upto five years from 27th August, 2022 onwards to align the validity with other units. Such extension shall be on temporary basis only, which will be reviewed by Development Commissioner concerned from time to time.

The Board further directed that all the concerned Development Commissioners shall take necessary action accordingly and submit a report to the BoA in the next meeting.

Report by Kandla, SEZ: As per decision taken in the 112th meeting of the BoA held on 29.10.2022, KASEZ has granted renewal of LoA to below mentioned 6 plastic recycling units for further period of five years i.e., from 27.08.2022 to 26.08.2027:

1. M/s. Blaze International
2. M/s. Polyrec Processors Pvt. Ltd.
3. M/s. Renew Plastics
4. M/s. Satguru Polyfab Pvt. Ltd.
5. M/s. R. R. Vibrant Polymers Ltd.
6. M/s. Ansa Polymers Ltd.

Further, one of the conditions imposed in the renewal of LoA letters issued to the above units in line with minutes of 112th BoA held on 29.10.2022 is as under: -

“This renewal will be treated as temporary and will be subject to following conditions: -

- i. You shall not carry out any DTA sales till you fulfil the shortfall of NFE and export obligations for the period upto 26th August 2022 i.e., upto the period of expiry of validity of your LoA. On fulfilment of obligations, you may be allowed DTA sale subject to fulfilment of all conditions stipulated in the policy dated 27.05.2021.
- ii. The performance of your unit will be continuously monitored and reviewed for fulfilment of export obligations as per the policy dated 27.05.2021. If the export obligations is not met then DTA sale would be put on hold till the unit achieves the mandated export obligations.”

Now, out of the above 6 units wherein no DTA sales was imposed till they fulfil the shortfall of NFE and export obligations for the period upto 26th August, 2022 i.e. upto the

period of expiry of validity of their LoA, the following 3 units have fulfilled the prescribed export obligations as per DoC's policy dated 27.05.2021 and positive NFE earnings & also submitted Chartered Accountant certificates certifying that these units have achieved the prescribed export obligations and are positive NFE:

- i. M/s. Renew Plastics
- ii. M/s. Blaze International
- iii. M/s. Polyrec Processors Pvt. Ltd.

Accordingly, DC, KASEZ, has permitted DTA sale to the above three units subject to fulfilling of policy dated 27.05.2021 as stipulated by the BoA in its 112th meeting held on 29.10.2022.

The above facts are submitted by DC, KASEZ for information of the BoA as per decision taken in the 112th meeting of the BoA held on 29.10.2022.

115.10: Request for Industrial License (1 proposal)

Relevant provision: As per section 9 (e) of the SEZ Act, 2005, the Board has powers and functions of granting, notwithstanding anything contained in the Industries (Development and Regulation) Act, 1951, a license to an industrial undertaking referred to in clause (d) of section 3 of that Act, if such undertaking is established, as a whole or part thereof, or proposed to be established, in a Special Economic Zone.

115.10(i) Proposal for grant of Industrial License under IDR Act, 1951 – M/s DCX Systems Limited, SEZ unit under CSEZ.

M/s DCX Systems Limited (SEZ unit under CSEZ) had applied for Industrial License under IDR Act, 1951 for manufacturing of following items:

- i. Sub Module for communication equipment including Antenna
- ii. Microwave components and Modules for RADAR and EW subsystems
- iii. Assembly and Testing of Microwave Modules

The location of the factory for the proposed activity is at Aerospace SEZ sector, Plot No. 29, 30 & 107, Hitech Defence & Aerospace Park, KIADB Industrial Area, Kavadanahalli Village, Devanahalli Taluk, Bengaluru Rural, Karnataka – 562110

The application of the unit was shared with various departments for their comments which have been received as below:

Departments	Comments
IS-I Division, (Security Desk), MHA	Vide OM dated 17.04.2023, Security Desk-MHA has conveyed security clearance in respect of the subject unit and its directors namely S/Shri Radhavendra Rao Hosakote Shama Rao, Neal Jeremy Castleman, Sankarakrishnan Ramalingam, Kalyanasundaram Chandrasekaran, Panchangam Nagashayana and Lathika Siddharth Pai. MoD may recommend appropriate security and auditing procedures

	for the firm as well as its supply-chain depending upon the threat perception and sensitivity of the products to be manufactured, as per the security instructions/architecture prescribed in the Security Manual for Licensed Defence Industries, issued by MoD. The Ministry of Commerce & Industry should ensure that all security instructions/architecture prescribed in the Security Manual for Licensed Defence Industries, issued by MoD from time to time are strictly adhered to.
IS-I Division, (Arms Section), MHA	Vide OM dated 24.07.2022, Arms Section-MHA has offered No Comments as the subject items do not fall under the category of small arms and ammunitions as per the Arms Act, 1959 & the Arms Rules, 2016.
DPIIT	DPIIT vide OM dated 02.08.2022 has offered No Comments. DPIIT has requested DoC to take appropriate action and may like to approach DoDP being the Administrative Ministry for Defence Sector.
D/o Defence Production	Vide OM dated 17.10.2022, DoDP has offered No Objection for grant of license for manufacture of following items only from defence angle, subject to standard terms and conditions under IDR Act, 1951: i. Sub Module for communication equipment including Antenna ii. Microwave components and Modules for RADAR and EW subsystems The item No. (iii) namely "Assembly and Testing of Microwave Modules" is already covered under item No. (ii). Therefore, no further license is required for the same. Further, the company may be directed to follow the security guidelines for Category 'A' mentioned in the Security Manual available at DDP's website while undertaking manufacturing of items for defence use.
O/o Acquisition Tech (Army), M/o Defence (Acquisition Wing)	Vide ID Note dated 29.07.2022, M/o Defence (Acquisition Wing) has offered No Objection.
M/o Civil Aviation	Vide email dated 09.01.2023, M/o Civil Aviation has stated that Airport Authority of India does not deal with any manufacturing of equipment/components. Equipment/parts used for providing services are directly provided by the vendors. Thus, in view of the above, AAI is not in a position to provide any comments on this issue of licensing of manufacturing by the unit.
M/o EF&CC	Vide OM dated 09.03.2023, M/o EF&CC has stated that the proposed project doesn't attract the provisions of the EIA

	Notification, 2006. However, M/o EF&CC has stated that the following may please be taken note of: - The construction of SEZ may require prior EC as per provision of EIA Notification, 2006, if applicable - In case the proposed project/activity involves the diversion of forest land, or passes through any Protected Area or Eco-sensitive zone, provision of Forest (Conservation) Act, 1980 and Wildlife (Protection) Act, respectively would be applicable. - Consent to Establish (CTE) and Consent to Operate (CTO) from the concerned State Pollution Control Board would be required under the provision of Air (Prevention and Control of Pollution) Act, 1981 and Water (Prevention and Control of Pollution) Act, 1974, if applicable.
State govt. of Karnataka	Vide letter dated 16.08.2022, State Govt. of Karnataka has offered No Objection for issue of IL subject to other statutory approvals from the Govt. authorities, if any.
CSEZ	Vide letter dated 03.08.2022, O/o CSEZ has offered No Objection.

The proposal is placed before the BoA for its consideration
